

purposes is continued to Wednesday July 15, 2026 at 3:30 p.m. in **Department 403** to allow Petitioner to file the required notices of hearing.

Pursuant to California Rules of Court, rule 3.1312(a), and Code of Civil Procedure section 1019.5, subdivision (a), no further written order is necessary. The minute order adopting this tentative ruling will serve as the order of the court and service by the clerk will constitute notice of the order.

Tentative Ruling

Issued By: SMC on 6/10/2026.
(Judge's initials) (Date)

(48)

Tentative Ruling

Re: ***Martinez v. Lelievre et al.***
Superior Court Case No. 22CECG02979

Hearing Date: June 11, 2026 (Dept. 501)

Motion: By Defendant for an Order to Compel Appearance of Plaintiffs at Deposition and Request for Sanctions and for Protective Order and to Compel an Independent Medical Examination

**If oral argument is timely requested, it will be entertained on
Thursday, June 18, 2026, at 3:30 p.m. in Department 403.**

Tentative Ruling:

To grant defendant Home Depot U.S.A., Inc.'s motion to compel plaintiffs Miguel Martinez and Francisca Vasquez to appear at a deposition as noticed. (Code Civ. Proc. §§ 2025.450, subd. (a), 2025.280, subd. (a).)

To impose monetary sanctions in favor of defendant Home Depot U.S.A., Inc., and against plaintiffs Miguel Martinez and Francisca Vasquez. (Code Civ. Proc. §§ 2023.010, subd. (d), 2023.030, subd. (a), 2025.450, subd. (g)(1).) Plaintiffs Miguel Martinez and Francisca Vasquez are ordered to pay \$4,256.25 in total sanctions to Goodman Neuman Hamilton LLP within 30 days of the clerk's service of the minute order.

To take defendant Home Depot U.S.A., Inc.'s motion for a protective order and motion to compel an independent medical examination off calendar, as no moving papers have been filed. (Code Civ. Proc., § 1005, subd. (b).)

Explanation:

The service of a deposition notice under Code of Civil Procedure section 2025.240 is effective to require any deponent who is a party to the action to attend and to testify, as well as to produce any document, electronically stored information, or tangible thing for inspection and copying. (Code Civ. Proc., § 2025.280, subd. (a).) Code of Civil Procedure section 2025.450, subdivision (a), states in pertinent part:

If, after service of a deposition notice, a party to the action... without having served a valid objection under Section 2025.410, fails to appear for examination, or to proceed with it... the party giving the notice may move for an order compelling the deponent's attendance and testimony... .

Here, defendant Home Depot U.S.A., Inc. ("Defendant") served a notice for deposition on plaintiffs Miguel Martinez and Francisca Vasquez ("Plaintiffs") scheduled for May 28, 2025. Plaintiffs did not appear for the deposition as noticed, and a certificate

of nonappearance was issued. Defendant subsequently served a deposition notice on Plaintiffs scheduled on August 14, 2025, for plaintiff Miguel Martinez and on August 18, 2025, for plaintiff Francisca Vasquez. Plaintiffs failed to attend their respective depositions. Accordingly, the court grants the motion to compel Plaintiffs to attend their depositions.

Sanctions

Sanctions may be imposed against a party that engages in the misuse of the discovery process if there is proper notice to the affected party, person, or attorney and an opportunity for a hearing. (Code Civ. Proc., § 2023.030, subd. (a).) Failing to respond or to submit to an authorized method of discovery is a misuse of the discovery process. (*Id.*, § 2023.010, subd. (d).)

If a motion to compel deposition is granted, the court shall impose a monetary sanction in favor of the party who noticed the deposition and against the deponent or the party with whom the deponent is affiliated, unless the court finds that the one subject to the sanction acted with substantial justification or that other circumstances make the imposition of the sanction unjust. (*Id.*, § 2025.450, subd. (g)(1).) Sanctions must be for reasonable expenses in enforcing discovery, including attorney's fees. (*Id.*, § 2023.030, subd. (a).)

Counsel for Defendant seeks \$1,890 in sanctions for 9 hours of attorney time billed at a reasonable rate of \$210 per hour. (Genetti Decl., ¶ 10.) Additionally, Defendant requests \$2,306.25 in costs associated with the noticed depositions that did not go forward due to plaintiffs' non-appearance and the \$60 filing fee associated with this motion. (*Ibid.*) Plaintiffs have not submitted an opposition to the motion that would support finding they acted with substantial justification or that the imposition of sanctions would be unjust. (Code Civ. Proc., § 2025.450, subd. (g)(1).) The court grants the request for sanctions in full.

Pursuant to California Rules of Court, rule 3.1312(a), and Code of Civil Procedure section 1019.5, subdivision (a), no further written order is necessary. The minute order adopting this tentative ruling will serve as the order of the court and service by the clerk will constitute notice of the order.

Tentative Ruling

Issued By: SMC **on** 6/9/2026 .
(Judge's initials) (Date)